

An Act

ENROLLED HOUSE
BILL NO. 2361

By: Hill, Gise, Pae and Munson
of the House

and

Daniels of the Senate

An Act relating to children; amending 10A O.S. 2021, Section 1-9-107, which relates to the Successful Adulthood Act; providing documents certain children leaving foster care shall be provided; providing that certain documents be given to individuals being released from the custody of the Office of Juvenile Affairs; and providing for codification.

SUBJECT: Children

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-9-107, is amended to read as follows:

Section 1-9-107. A. This section shall be known and may be cited as the "Successful Adulthood Act".

B. The purpose of the Successful Adulthood Act shall be:

1. To ensure that eligible individuals, who have been or are in the foster care program of the Department of Human Services or a federally recognized Indian tribe with whom the Department has a contract, due to abuse or neglect, receive the protection and support necessary to allow those individuals to become self-reliant and productive citizens through the provision of requisite services that include, but are not limited to, transitional planning, housing, medical coverage, and education; provided, that eligibility

for tuition waivers shall be as set forth in Section 3230 of Title 70 of the Oklahoma Statutes;

2. To break the cycle of abuse and neglect that obligates the state to assume custody of children; and

3. To help children who have experienced foster care at age fourteen (14) or older achieve meaningful permanent connections with a caring adult.

C. An individual is eligible to receive services for the transition of the child to a successful adulthood from the age of fourteen (14) until the age of eighteen (18), during the time the individual is in the custody of the Department or a federally recognized Indian tribe and in an out-of-home placement.

D. The permanency plan for the child in transition to a successful adulthood shall be developed in consultation with the child and, at the option of the child, with up to two members of the permanency planning team to be chosen by the child, excluding the foster parent and caseworker for the child, subject to the following provisions:

1. One individual selected by the child may be designated to be the advisor and, as necessary, advocate of the child, with respect to the application of the reasonable and prudent parent standard to the child; and

2. The Department may reject an individual selected by the child to be a member of the permanency planning team at any time if the Department has good cause to believe that the selected individual would not act in the best interests of the child.

E. 1. Each child in foster care under the responsibility of the Department or a federally recognized Indian tribe and in an out-of-home placement, who has attained fourteen (14) years of age shall be given a written Notice of Rights that describes the following specific rights of the child:

- a. the rights of the child with respect to education, health, visitation, and court participation,
- b. the right to be provided with the documents specified in subsection F of this section, and

c. the right to stay safe and avoid exploitation.

2. The child shall sign an acknowledgment stating that the child has been provided with a copy of the Notice of Rights and that the rights described in the notice have been explained to the child in an age-appropriate way.

F. A child about to leave foster care by reason of having attained eighteen (18) years of age and who has been in foster care for at least six (6) months shall be given the following documents pertaining to the child:

1. An official or certified copy of the United States birth certificate;

2. A Social Security card issued by the Commissioner of Social Security;

3. ~~Health insurance information~~ Information about how to obtain health insurance;

4. A copy of the medical records of the child;

5. A state-issued driver license or identification card; ~~and~~

6. Official documentation necessary to show that the child was previously in foster care; and

7. Any educational transcripts, diplomas, or professional certificates earned while in the custody of the Department of Human Services.

G. Successful adulthood services may continue to the age of twenty-one (21), provided the individual is in the custody of the Department or a federally recognized Indian tribe due to abuse or neglect and is in an out-of-home placement at the time of the individual's sixteenth birthday.

H. Individuals who are sixteen (16) years of age or older, who have been released from the custody of the Department or federally recognized Indian tribe due to the entry of an adoption decree or guardianship order are eligible to receive successful adulthood services until the age of twenty-one (21).

I. Individuals who are eligible for services pursuant to the Successful Adulthood Act and who are between eighteen (18) and twenty-one (21) years of age shall be eligible for Medicaid coverage, provided such individuals were also in the custody of the Department or a federally recognized Indian tribe on the date they reached eighteen (18) years of age and meet Medicaid financial eligibility guidelines.

J. The Department, in conjunction with the Oklahoma State Regents for Higher Education, shall provide parents and legal guardians of foster youth with information on the Oklahoma Higher Learning Access Program (OHLAP) including, but not limited to, eligibility, application guidelines, academic requirements, and any other information required by the Oklahoma Higher Learning Access Act for participation in the Program.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-7-621 of Title 10A, unless there is created a duplication in numbering, reads as follows:

A person who has been placed in the custody of the Office of Juvenile Affairs, who has attained eighteen (18) years of age, and who is being released from the custody of the Office of Juvenile Affairs with a plan to re-enter the community as a resident of the state shall be given the following documents pertaining to the person upon release:

1. An official or certified copy of the United States birth certificate;

2. A Social Security card issued by the Commissioner of Social Security;

3. Information about how to obtain health insurance and personal medical records;

4. A state-issued driver license or identification card; and

5. Any educational transcripts, diplomas, or professional certificates earned while in the custody of the Office of Juvenile Affairs.

Passed the House of Representatives the 11th day of March, 2025.

Presiding Officer of the House
of Representatives

Passed the Senate the 15th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____